Igor Fradkin, Esq. SBN 299491
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Attorney for Plaintiff, CHARLA WILLIAMS

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
03/03/2025
Clerk of the Court
BY: GINA GONZALES
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

CHARLA WILLIAMS, an individual; Plaintiff, v. SAFEWAY INC., a Delaware corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; JOHN DOE, an individual; and DOES 1 TO 100, inclusive, Defendants.	Case No.: CGC-24-614480 **DECLARATION OF IGOR FRADKIN, ESQ. RE: ORDER TO SHOW CAUSE RE: FAILURE TO OBTAIN AN ANSWER FROM, OR ENTER DEFAULT AGAINST, OR DISMISS DEFENDANT** Date: March 4, 2025 Time: 10:30 am Dep.: 610

I, Igor Fradkin, Esq. declare as follows:

I am an attorney duly licensed to practice before all courts in the State of California. I am the attorney for Plaintiffs in the above-entitled action. I have personal knowledge of the facts contained herein if called upon to testify, I could and would competently do so.

1. On March 3, 2025, Plaintiff filed a Request for Dismissal with the court to dismiss Defendant, ALBERTSONS COMPANIES, INC., A DELAWARE CORPORATION, from this matter. Please see "**Exhibit A**."
2. At this time, all other parties have filed a responsive pleading.
3. We are currently engaged in discovery with Defendants SAFEWAY INC., A DELAWARE CORPORATION, and GARDAWORLD.
4. Plaintiff 's counsel apologizes for any inconvenience the foregoing events may have caused onto the Court however, based on the foregoing, respectfully requests that the Order to Show Cause hearing against Plaintiff's counsel is discharged, and that the court dismisses ALBERTSONS COMPANIES, INC., A DELAWARE CORPORATION, without prejudice.

I declare under penalty of perjury under the law of the State of California that the foregoing is true and correct.

Executed this 3rd day of March, 2025, at Los Angeles, California.

Igor Fradkin

Igor Fradkin, Esq.

EXHIBIT A

ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER: 299491
NAME: Igor Fradkin, Esq.
FIRM NAME: DOWNTOWN L.A. LAW GROUP
STREET ADDRESS: 612 S. Broadway
CITY: Los Angeles STATE: CA ZIP CODE: 90014
TELEPHONE NO.: (213) 389-3765 FAX NO.:
E-MAIL ADDRESS: igor@downtownlalaw.com, igorteam@downtownlalaw.com
ATTORNEY FOR *(name)*: Plaintiff, Charla Willaims

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO
STREET ADDRESS: 400 Mcallister St
MAILING ADDRESS: 400 Mcallister St
CITY AND ZIP CODE: San Francisco, CA 94102
BRANCH NAME: Civic Center Courthouse

PLAINTIFF/PETITIONER: CHARLA WILLIAMS, AN INDIVIDUAL
DEFENDANT/RESPONDENT: SAFEWAY INC., A DELAWARE CORPORATION ET AL

REQUEST FOR DISMISSAL

CASE NUMBER: CGC-24-614480

A conformed copy will not be returned by the clerk unless a method of return is provided with the document.

This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)

1. TO THE CLERK: Please **dismiss** this action as follows:
   a. (1) [ ] With prejudice (2) [x] Without prejudice
   b. (1) [ ] Complaint (2) [ ] Petition
   (3) [ ] Cross-complaint filed by *(name)*: on *(date)*:
   (4) [ ] Cross-complaint filed by *(name)*: on *(date)*:
   (5) [ ] Entire action of all parties and all causes of action
   (6) [x] Other *(specify)*:* ALBERTSONS COMPANIES, INC., A DELAWARE CORPORATION ONLY**

2. *(Complete in all cases except family law cases.)*
   The court [ ] did [x] did not waive court fees and costs for a party in this case. *(This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed)*.

Date: March 3, 2025

Igor Fradkin, Esq.
(TYPE OR PRINT NAME OF [ ] ATTORNEY [ ] PARTY WITHOUT ATTORNEY)

*If dismissal requested is of specified parties only of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed

Igor Fradkin
(SIGNATURE)
Attorney or party without attorney for:
[x] Plaintiff/Petitioner [ ] Defendant/Respondent
[ ] Cross-Complainant

3. **TO THE CLERK:** Consent to the above dismissal is hereby given.**
Date: _____

(TYPE OR PRINT NAME OF [ ] ATTORNEY [ ] PARTY WITHOUT ATTORNEY)

** If a cross-complaint - or Response (Family Law) seeking affirmative relief - is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581 (i) or (j).

(SIGNATURE)
Attorney or party without attorney for:
[ ] Plaintiff/Petitioner [ ] Defendant/Respondent
[ ] Cross-Complainant

4. [ ] Dismissal entered as requested on *(date)*:
5. [ ] Dismissal entered on *(date)*: as to only *(name)*:
6. [ ] Dismissal **not entered** as requested for the following reasons *(specify)*:

7. a. [ ] Attorney or party without attorney notified on *(date)*:
   b. [ ] Attorney or party without attorney not notified. Filing party failed to provide
   [ ] a copy to be conformed [ ] means to return conformed copy

Date: _____ Clerk, by _____, Deputy

PLAINTIFF/PETITIONER: CHARLA WILLIAMS, AN INDIVIDUAL DEFENDANT/RESPONDENT: SAFEWAY INC., A DELAWARE CORPORATION ET AL	CASE NUMBER: CGC-24-614480

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover $10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived court fees and costs in this action for *(name):*
2. The person named in item 1 is *(check one below):*
   a. ☐ not recovering anything of value by this action.
   b. ☐ recovering less than $10,000 in value by this action.
   c. ☐ recovering $10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. All court fees and court costs that were waived in this action have been paid to the court *(check one):* ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

_____
(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY MAKING DECLARATION)

▶ _____
(SIGNATURE)

PROOF OF SERVICE
(Code of Civil Procedure §1013a)

STATE OF CALIFORNIA, COUNTY OF SAN FRANCISCO

I am employed in the County of Los Angeles, State of California. I am over the age of 18 years and not a party to the within action; my business address is 612 S. Broadway, Los Angeles, CA 90014.

On March 3, 2025 I served a true and correct copy of the foregoing document described as **REQUEST FOR DISMISSAL** on the interested parties in this action addressed as follows:

Michael L. Smith Esq.
michael.smith@manningkass.com
S. Christian Anderson Esq.
christian.anderson@manningkass.com
MANNING & KASS ELLROD, RAMIREZ, TRESTER LLP
One California St., Ste 900
San Francisco, California 94111

Attorneys for Defendants, SAFEWAY, INC. a Delaware corporation; and GARDAWORLD

[X] **BY ELECTRONIC MAIL:** I caused a copy of the documents to be sent from the email address Natalie.Ayala@downtownlalaw.com to the persons and email addresses listed above. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the above is true and correct.

Executed on March 3, 2025 at Los Angeles, California.

Natalie M. Ayala
Natalie M. Ayala

PROOF OF SERVICE
(Code of Civil Procedure §1013a)

STATE OF CALIFORNIA, COUNTY OF SAN FRANCISCO

I am employed in the County of Los Angeles, State of California. I am over the age of 18 years and not a party to the within action; my business address is 612 S. Broadway, Los Angeles, CA 90014.

On March 3, 2025 I served a true and correct copy of the foregoing document described as **DECLARATION OF IGOR FRADKIN, ESQ. RE: ORDER TO SHOW CAUSE RE: FAILURE TO OBTAIN AN ANSWER FROM, OR ENTER DEFAULT AGAINST, OR DISMISS DEFENDANT** on the interested parties in this action addressed as follows:

Michael L. Smith Esq.
michael.smith@manningkass.com
S. Christian Anderson Esq.
christian.anderson@manningkass.com
MANNING & KASS ELLROD, RAMIREZ, TRESTER LLP
One California St., Ste 900
San Francisco, California 94111

Attorneys for Defendants, SAFEWAY, INC. a Delaware corporation; and GARDAWORLD

[X] **BY ELECTRONIC MAIL:** I caused a copy of the documents to be sent from the email address Natalie.Ayala@downtownlalaw.com to the persons and email addresses listed above. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the above is true and correct.

Executed on March 3, 2025 at Los Angeles, California.

Natalie M. Ayala
Natalie M. Ayala